

In the Supreme Court of Bangladesh
High Court Division
(Civil Revisional Jurisdiction)

Present:

Mr. Justice Md. Aminul Islam.

Civil Revision No.1177 of 2013.

Tofael Ahmed and another
.....Petitioners.

Vs.

Ayesha Khatun and others.
..... Opposite-Parties.

Mrs. Shahana Perveen, Advocate.
..... for the petitioners.

No one appears.
.....for the opposite-parties.

Heard and Judgment on: 12.07.2023.

This Rule was issued calling upon the opposite parties to show cause as to why the order complained of in the petition moved in court today should not be set aside and/or pass such other or further order or orders as to this Court may seem fit and proper.

The facts leading to the issuance of the Rule in a nutshell can be stated that the plaintiffs as petitioners filed an Other Suit No.65 of 2012 before the learned Court of Joint District Judge, Bandarban defendants as the opposite parties in the suit. The plaintiffs purchased the suit land from the defendants and they have lost their subsisting interest over the suit land. The plaintiffs have got right, title, interest and possessing the same but the defendants on various way trying to disturb the plaintiffs possession. The defendants

created some forged documents and forcibly tried to evict the petitioners, the cause of action arose for filing the suit and thus plaintiffs filed this suit for declaration of their title and also prayer for that the registered deed No.23 of 2009 and 80 of 1981 dated 15.06.2009 and 02.03.1981 are forged, void and not binding upon the plaintiffs. Hence , the plaintiffs case.

During pendency of the suit the plaintiffs as petitioners filed an application under Order XL Rule 1 of the Code of Civil Procedure praying for appointment of a Receiver in respect of the disputed schedule land on the grounds that the plaintiffs filed a suit for declaration of title and recovery of khas possession and some registered deed is forged void and not binding upon the plaintiffs as petitioners. There is an apprehension of breach of peace which might lead to loss of lives between the parties. On the other hand, the defendants as opposite parties filed a written objection denying all materials on record and the defendants filed Other Suit No.39 of 2008 for Specific Performance of Contract and praying for simple declaration. There is every possibility for disturbance and litigation between the parties and thus the plaintiffs filed an application praying for appointment of a receiver in the suit land.

The learned Joint District Judge after hearing both the parties considering the materials on record allowed the application for appointment of Receiver and who appoint Upazilla Nirbahi Officer as Receiver vide order dated 16.10.2012.

Being aggrieved by and dissatisfied with the aforesaid order the defendants preferred in Miscellaneous Appeal No. 16 of 2012 before the learned District Judge, Bandarban and after hearing the learned Appellate Court allowed the application with direction both the parties to maintain status-quo in respect of the appointment of Receiver by his order dated 22.11.2012.

Being aggrieved by and dissatisfied with the order dated 22.11.2012 the plaintiffs as petitioners preferred in Civil Revision No.1177 of 2013 before this Court and obtained the instant Rule with granting an ad-interim order of stay.

Mrs. Shahana Perveen, the learned Advocate appeared on behalf of the petitioners while no one appeared on behalf of the opposite party though notices were served properly. It is well settled by our Appellate Division decided in Safor Uddin Vs. Fazlul Huq, case as reported in 49 DLR(AD) 151 that a Revision can be disposed of on merit in the absence of either party or both the parties. In view of the fact, this is an old case. I am inclined to take it up for disposal the Rule on merit in presence of the petitioners.

Mrs. Shahana Perveen, the learned Advocate appearing for the petitioners and submits that the learned District Judge has committed an error of law occasioning failure of justice inasmuch as the order of status-quo passed without hearing the petitioners and thus the same is liable to be set aside. She further submits that the plaintiffs are in possession of the suit

land and defendants have also claimed the said portion of land and there is every chance of breach of peace in between the parties and thus considering all aspects the learned Joint District Judge allowed the prayer for appointing as Receiver but the learned District Judge illegally allowed the application on 22.11.2012 and to maintain the status-quo till the next date on the issue of receiver. She lastly submits that as per provision of Order XL Rule 1 of the Code of Civil Procedure, the learned Joint District Judge considering all aspects correctly passed the order of receiver but the aforesaid order has been stayed by the learned District Judge without giving any opportunity to the plaintiffs-petitioners and she prayed for to make the Rule absolute and the same is liable to be set aside.

On the other hand, the opposite parties did not appear before this Court. Although the notice has been duly served upon the defendants opposite parties but they did not engage any lawyer to oppose the Rule.

In order to appreciate the submissions made by the learned Advocate for the petitioners, I have gone through the Revisional application and order of the Courts below very carefully.

Now the question calls for consideration whether the learned Judge of the Appellate Court below committed any error of law resulting in an error in the decision occasioning failure of justice in passing the impugned order.

On perusal of the record it appears that the plaintiffs as petitioners instituted a suit being Other Suit No.65 of 2012 for declaration of their Title

and also prayer for that the registered deed No.23 of 2009 and 80 of 1981 dated 15.06.2009 and 02.03.1981 are forged, void and not binding upon the plaintiffs. The defendants Nos.1-13 have no right, title over the same. Moreover, the defendants as opposite-parties sold out the schedule land to the plaintiffs as petitioners. In this way the plaintiffs as petitioners have got right, title, interest and possessing the same but the defendants on various way trying to disturb the plaintiffs possession. The defendants created some forged documents and forcibly tried to evict the petitioners from the suit land. Thereafter, the plaintiffs filed an application under Order XL Rule 1 of the Code of Civil Procedure praying for appointment of Receiver. The learned trial Court allowed the application and appointed Upazilla Nirbahi Officer as receiver.

Scrutinizing the impugned order, relevant papers and all documents, it is obvious to note that admittedly, the original Suit No.65 of 2012 was filed before the learned Joint District Judge, Bandarban for declaration of title and recovery of khas possession in the suit land. On the other hand, the defendants as opposite parties instituted Other Suit No.39 of 2008 for Specific Performance of Contract with simple declaration. The plaintiffs claimed that they have got right, title and possession in the suit land but the plaintiffs as petitioners were evicted on 11.09.2011 from the schedule land. On the other hand, the defendants opposite parties claimed that the original owner of Meher Ali transferred the property on 02.03.1981 to the

predecessor of the defendants as opposite parties by way of Affidavit. Though the plaintiffs as petitioners instituted a Suit No.65 of 2012 for declaration of title and recovery of khas possession .

During pendency of the suit, the petitioners filed an application for appointment of a receiver on 16.10.2012 and after hearing the learned Joint District Judge, Bandarban allowed the application and appointed Upazilla Nirbahi Officer as Reciever. Therefore, the defendants as opposite parties filed a Miscellaneous Appeal No.16 of 2012 against impugned the order dated 16.10.2012 before the learned District Judge, Bandarban who admitted the Appeal as well as called for the Lower Court Record (L.C.R) and the next date was fixed on 22.01.2013 for L.C.R. for appeal hearing. In the meantime, the defendants as opposite parties filed an application praying for stay by order dated 19.11.2012.The learned Joint District Judge fixed on 22.01.2023 for further hearing.

It further appears that the learned District Judge by order dated 19.11.2012 fixed on 22.01.2013 for hearing subject to availability of L.C.R.But the defendants-appellant-opposite parties on 22.11.2012 filed an application for staying the earlier order of appointing the Receiver .It appears that the copy of the said application was not served upon the plaintiffs-petitioners, resultantly the petitioners were not given any opportunity of submitting objection against the said application for stay .The

learned Judge of the lower Appellate Court below only hearing the defendants-Appellants passed an order of status-quo till next date.

It further appears that the learned District Judge allowed the application without giving any opportunity to the petitioners passed an order of status-quo as to appointment receiver of which appears violation of the principle of natural justice. The learned Appellate Court below most illegally and arbitrary allowed the application and thereby committed an error of law resulting in an error in the decision occasioning failure of justice.

It further appears that the order of stay granted earlier by this Court on 29.04.2013 against the order of status-quo passed by the Appellate Court below dated 22.11.2012 which is prevailing from the very beginning but both the parties did not any step for hearing in the instant Rule. In the meantime more than 11 years elapsed in disposal for appointment of receiver.

In view of the discussions made above, I am to hold that the order passed the Appellate Court below is not based on correct evaluation of the facts and circumstances of the case for which it needs interference by this Court.

However, I find merit in this Rule.

In the result, the Rule is made absolute.

The impugned order of status-quo dated 22.11.2012 passed by the learned District Judge, Bandarban in Miscellaneous Appeal No.16 of 2012 is hereby set aside.

However, there will be no order as to cost. The order of stay granted earlier by this Court is hereby recalled and vacated.

The learned District Judge, Bandarban is directed to dispose of the Miscellaneous Appeal on merit within 6(six) months from the date of receipt of the judgment and order positively.

Let the copy of the judgment and order be sent to the Court concerned at once.

Md. Abadul Haque/ Bench Officer.